

HOUSE BILL 2488

By Haston

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8 and Title 49, relative to returning authority
over education to the state from the U.S.
Department of Education.

WHEREAS, the United States Constitution establishes a federal system that reserves those powers not delegated to the federal government to the states and the people; and

WHEREAS, education is not a power delegated to the federal government and has historically been governed by states and local communities accountable to families; and

WHEREAS, the creation of the U.S. Department of Education expanded federal involvement in education significantly, while academic achievement stagnated or declined; and

WHEREAS, national assessments and polling show troubling trends in student reading and math performance, as well as a lack of basic civic knowledge; and

WHEREAS, decades of increased federal spending and regulation have not improved outcomes for students, but have imposed burdens on states and their schools; and

WHEREAS, federal control has created administrative bloat and bureaucracy that diverts resources away from classrooms and students; and

WHEREAS, states are the drivers of innovation in education, leading effective education reforms that expand and improve outcomes; and

WHEREAS, governors, state legislators, and local officials are directly accountable to parents and taxpayers for their decisions regarding education, providing clearer responsibility and responsiveness than unelected federal bureaucrats; and

WHEREAS, prioritizing the needs of students and families requires placing decision-making authority with those closest to the classroom; and

WHEREAS, U.S. Secretary of Education Linda McMahon has initiated organizational restructuring by reducing the U.S. Department of Education's workforce without adverse effects on educational services; and

WHEREAS, the State of Tennessee affirms its responsibility to lead on education in a manner consistent with the United States Constitution and the principles of federalism; and

WHEREAS, the State of Tennessee supports efforts to dismantle the U.S. Department of Education, returning authority over education back to the State; and

WHEREAS, the State of Tennessee encourages shifting core responsibilities of the federal Department of Education to other agencies, in both state and federal governments, that are better suited to execute them; and

WHEREAS, the State of Tennessee will seek every opportunity, in cooperation with other federal agencies, to regain fuller control of their K-12 schools; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) There is established a task force for educational leadership composed of members of the general assembly selected by the speakers, representatives from the office of the governor selected by the governor, representatives from the department of education selected by the commissioner, and the attorney general and reporter that is empowered to compel information from state agencies.

(b) The task force shall, within one hundred twenty (120) days from the effective date of this act, publish a comprehensive plan to assume full responsibility for education programs currently administered by the United States department of education, including, but not limited to, Title funds, special education, and civil rights.

(c) The comprehensive plan must include, at a minimum:

(1) Statutory changes required to assume administrative control over federal education programs;

(2) Recommended waivers, transfers, or block grants to be requested from the federal government;

(3) Identification of federal education mandates that the state will decline to administer on grounds that the mandate should not be statutorily required; and

(4) Legislation suitable for immediate introduction.

(d) The department of education shall, within sixty (60) days of the effective date of this act, conduct an inventory of all existing federal education programs and grants administered by this state, including the funding amounts, statutory authority, and reporting requirements, and submit the inventory to the general assembly.

(e) The attorney general and reporter shall, within sixty (60) days of the effective date of this act, conduct a review of all state statutes and rules that reference or incorporate federal education statutes or regulations.

(f) Members of the general assembly serving on the task force shall introduce legislation to implement the comprehensive plan within sixty (60) days following the date on which the comprehensive plan is published, or when the general assembly next convenes in a regular session, whichever occurs first.

(g) If the general assembly fails to enact legislation to implement the comprehensive plan within one (1) year of its publication, the department of education shall administratively implement recommendations of the comprehensive plan that do not require statutory changes, to the extent permitted by law.

(h) The task force may cooperate with other states to pursue joint waiver requests and coordinated negotiations with the United States department of education to accelerate the return of educational authority to this state.

(i) The department of education shall publish a report, no later than two (2) years from the effective date of this act, using metrics specified in the comprehensive plan to measure student outcomes, fiscal efficiency, and regulatory burdens, to allow the public to compare outcomes under new state educational leadership relative to earlier periods of federal education control.

(j) The task force for educational leadership ceases to exist the day after the department of education publishes the report required in subsection (i).

SECTION 2.

A certified copy of this act shall be transmitted by the Secretary of State to the President of the United States, the U.S. Secretary of Education, and each member of the Tennessee Congressional delegation.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.